ICT SERVICES AGREEMENT

This Agreement is made on 28 September 2020 between Eastmere Bank plc, 1 Quayside Row, Bristol BS1 6XE (the Customer), and Brackwater Records Ltd, 3 Tanner's Wharf, Hull HU1 2PL (the Supplier).

1. DEFINITIONS

1.1 Customer Data means all data, including personal data, that the Supplier receives or creates for the Customer. ICT incident has the meaning given in Regulation (EU) 2022/2554.

2. SERVICES AND SUBCONTRACTING

2.1 The Supplier shall provide the services described in Schedule 1 (the Services), being offsite storage and retrieval of the Customer's archived loan files. Schedule 1 is a clear and complete description of every function and ICT service provided under this Agreement.

2.2 The Supplier may subcontract part of the Services only with the Customer's prior written consent. Any approved subcontractor is bound by the same obligations as the Supplier, and the Supplier remains fully responsible for the subcontractor's performance.

3. SERVICE LEVELS

3.1 The Supplier shall meet the service levels in Schedule 2, including monthly availability of 99.9%, a four-hour response time for priority 1 tickets and a recovery time objective of eight hours.

3.2 Service levels are reviewed every twelve months. Any update or revision takes effect only when agreed in writing and recorded as a new version of Schedule 2.

4. LOCATIONS OF SERVICE AND DATA

4.1 The Services are provided from, and Customer Data is processed and stored in, the United Kingdom only.

4.2 The Supplier shall notify the Customer in writing at least ninety (90) days before any change to the countries or regions in which the Services are provided or Customer Data is processed or stored.

5. DATA PROTECTION AND SECURITY

5.1 The Supplier shall ensure the availability, authenticity, integrity and confidentiality of Customer Data, including personal data, in accordance with Applicable Data Protection Law and the security measures in Schedule 3.

5.2 Customer Data is encrypted in transit and at rest. Access is limited to named personnel with a business need.

6. ICT INCIDENT ASSISTANCE

6.1 When an ICT incident related to the Services occurs, the Supplier shall provide the Customer with all reasonable assistance to contain, investigate and recover from it, at no additional cost to the Customer.

7. COOPERATION WITH AUTHORITIES

7.1 The Supplier shall cooperate fully with the competent authorities and resolution authorities of the Customer, including persons appointed by them, and shall give them access to information, premises and personnel relating to the Services.

8. FEES AND PAYMENT

8.1 The Customer shall pay the fees in Schedule 4 monthly in arrears within thirty (30) days of a valid invoice.

8.2 Fees are fixed for the Initial Term. Late payments bear interest at two percent above the base rate.

9. TERM AND TERMINATION

9.1 This Agreement runs for an Initial Term of three years and renews for successive one-year periods.

9.2 The Customer may terminate this Agreement on thirty (30) days' written notice if the Supplier materially breaches applicable law or this Agreement, if circumstances arise that alter the performance of the Services, or if a competent authority can no longer effectively supervise the Customer because of this Agreement. The Customer may also terminate for convenience on six (6) months' written notice.

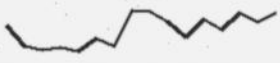
10. EXIT AND RETURN OF DATA

10.1 On termination, expiry, insolvency, resolution or discontinuation of the Supplier's business, the Supplier shall give the Customer access to, recover and return all Customer Data, personal and non-personal, in an easily accessible, machine-readable format within thirty (30) days, and then delete its copies.

11. GOVERNING LAW

11.1 This Agreement is governed by the laws of England and Wales. The courts of London have exclusive jurisdiction.

Signed for and on behalf of the parties:



Adaeze Marlow, Head of Procurement



Gwen Ashdown, Operations Director